

Kshama Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 September 2020 · WRIT - C No. - 12460 of 2020 · **Writ disposed; objections before EE; s.127 after final order.**

HEADNOTE

A writ seeking certiorari against a provisional assessment of Rs. 1,23,188 was disposed without examining the demand. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking final order was to follow; coercive action was stayed; and any challenge to the final order was relegated to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Kshama Pandey filed a writ seeking certiorari to quash Assessment Letter No. 844 dated 11 February 2020 issued by the Executive Engineer, demanding Rs. 1,23,188. At the hearing, counsel for the electricity department supplied a copy of the provisional assessment. She alleged that the respondents were taking coercive recovery steps without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

provisional assessment — speaking final order and Section 127 appeal

HOLDING

Where the consumer challenged a provisional assessment of Rs. 1,23,188 alleging coercive recovery without hearing or compliance with the U.P. Electricity Supply Code, 2005, the Court declined to quash the demand and instead directed her to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection, and relegated any challenge to the final order to an appeal under Section 127 of the Electricity Act, 2003, the recovery citation to revive on default of appearance. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the provisional assessment, the Court left any further grievance to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Executive Engineer was required to pass a final speaking order; if aggrieved, the consumer was relegated to Section 127 rather than further writ interference. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The demand was treated as a provisional assessment requiring a final order by the Executive Engineer before Section 127 could be invoked. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ASSESSMENT LETTER NO. 844 DATED 11.02.2020 AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Writ disposed without examining the demand or the Supply Code on merits. ¶ 1